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§2-1-1. Short title.

This act shall be known as the Oklahoma Agricultural Code.
Laws 1970, c. 260, § 19, emerg. eff. April 22, 1970. EC=1>

§2-1-2. State Department of Agriculture - Establishment - Composition.

The State Department of Agriculture shall consist of the State Board of Agriculture, the divisions, and other positions and offices as established by law and by the Board.

Added by Laws 1955, p. 1, art. 1, § 1, emerg. eff. June 3, 1955.

Amended by Laws 2000, c. 243, § 1, emerg. eff. May 24, 2000.

§2-1-3. Definitions.

For the purposes of the Oklahoma Agricultural Code, unless the context indicates otherwise:

1. "Authorized agent" means a person who has been authorized by the State Board of Agriculture to act on behalf of the Board in making investigations, inspections, performing other services, or doing any particular act or acts which have been vested by the Oklahoma Agricultural Code in the Board. A written or printed commission signed by the President of the Board shall be proof that the holder has lawful authority to act on behalf of the Board in implementing the Oklahoma Agricultural Code;

2. "Beef" means the flesh of a bovine animal;

3. "Beef product" means the edible products produced in whole or in part from beef, excluding milk and milk products;

4. "Board" means the State Board of Agriculture;

5. "Code" means the Oklahoma Agricultural Code;

6. "Department" means the Oklahoma Department of Agriculture, Food, and Forestry and its employees, officers, and divisions. Whenever the name "Department of Agriculture" appears in any law, contract or other document, it shall be deemed to refer to the Oklahoma Department of Agriculture, Food, and Forestry;

7. "Director" means the Director of a division established in the Oklahoma Department of Agriculture, Food, and Forestry;

8. "License" means a written document issued by the Board granting authority to a person to engage in a business, occupation, or activity;

9. "Livestock" or "animals" means any cattle, bison, horses, sheep, goats, asses, mules, swine, domesticated rabbits, and chickens, turkeys, and other domesticated fowl, and any animal or bird in captivity;

10. "Official identification" means any official method of identification approved by USDA, as described by 9 C.F.R. § 86.1, or

the State Veterinarian. Official identification for specific species may be further defined within the applicable section of the Oklahoma Administrative Code. Backtags shall not be considered official identification unless the animal is shipped directly to slaughter. The term "official ear tag" is synonymous with "official identification";

11. "Permit" means a written document issued by the Board giving consent for a person to engage in an activity;

12. "Person" means the state, any municipality, political subdivision, institution, individual, public or private corporation, partnership, association, firm, company, public trust, joint-stock company, trust, estate, state or federal agency, other governmental entity, or any other legal entity or an agent, employee, representative, assignee or successor thereof;

13. "Pork" means the flesh of a porcine animal;

14. "Pork products" means a product or byproduct produced in whole or in part from pork;

15. "President" means the President of the State Board of Agriculture. The President of the State Board of Agriculture shall also be designated as the Commissioner of Agriculture;

16. "Producer" means any person planting, raising, growing, or harvesting agricultural products;

17. "Quarantine" means a written document issued by the Board to restrict the movement of animals, birds, plants, or agricultural commodities into or out of a specified area for the control or prevention of diseases or pests; and

18. "Stop sale order" or "stop use order" means a written or printed order signed by the President or authorized agent of the Board, prohibiting the sale, offering for sale, exposure for sale, or use of any agricultural product, article, device, service, or commodity covered by the Oklahoma Agricultural Code.

Added by Laws 1955, p. 1, art. 1, § 3, emerg. eff. June 3, 1955. Amended by Laws 1965, c. 177, § 1; Laws 1972, c. 89, § 1, emerg. eff. March 28, 1972; Laws 1992, c. 296, § 1, emerg. eff. May 26, 1992; Laws 1996, c. 138, § 1, emerg. eff. May 1, 1996; Laws 2000, c. 243, § 2, emerg. eff. May 24, 2000; Laws 2002, c. 173, § 2, emerg. eff. May 6, 2002; Laws 2003, c. 3, § 1, emerg. eff. March 19, 2003; Laws 2005, c. 292, § 1, eff. July 1, 2005; Laws 2019, c. 173, § 1, eff. Nov. 1, 2019; Laws 2020, c. 53, § 1, eff. Nov. 1, 2020.

NOTE: Laws 2002, c. 187, § 1 repealed by Laws 2003, c. 3, § 2, emerg. eff. March 19, 2003.

§2-1-4. Repealed by Laws 2000, c. 243, § 125, emerg. eff. May 24, 2000.

§2-2-1. Membership - Appointment and qualifications - Vacancies.